

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 612

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO SOLAR ENERGY; AMENDING CHAPTER 1, TITLE 61, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 61-122, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING PORTABLE SOLAR GENERATION DEVICES; AMENDING SECTION 61-129, IDAHO CODE, TO REVISE PROVISIONS REGARDING PUBLIC UTILITIES; AMENDING SECTION 48-1802, IDAHO CODE, TO REVISE A DEFINITION; AMENDING SECTION 48-1803, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE APPLICABILITY OF THE RESIDENTIAL SOLAR ENERGY SYSTEM DISCLOSURE ACT; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 1, Title 61, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 61-122, Idaho Code, and to read as follows:

61-122. PORTABLE SOLAR GENERATION DEVICES. (1) "Portable solar generation device" means a moveable photovoltaic generation device that:

(a) Is designed to be connected to a building's electrical system through a standard electrical outlet;

(b) Is intended to offset part or all of a customer's electricity consumption;

(c) Is limited to supplying a maximum power output of not more than one thousand two hundred (1,200) watts to the utility electric grid;

(d) Is certified by underwriters laboratories or an equivalent nationally recognized testing laboratory; and

(e) Meets the standards of the most recent version of the national electrical code.

(2) Notwithstanding any other provision of law, a portable solar generation device shall be exempt from interconnection and net metering requirements.

(3) An electric corporation:

(a) Shall not require a customer using a portable solar generation device to:

(i) Obtain the electric corporation's approval before installing or using the device;

(ii) Pay any fee or charge related to the device or for feeding energy back into the utility electric grid; or

(iii) Install any additional controls or equipment beyond what is integrated into the device; and

(b) Shall not be liable for any damage or injury caused by a portable solar generation device.

SECTION 2. That Section 61-129, Idaho Code, be, and the same is hereby amended to read as follows:

61-129. PUBLIC UTILITY. (1) The term "public utility" when used in this act includes every common carrier, pipeline corporation, gas corporation, electrical corporation, telephone corporation, and water corporation, as those terms are defined in this chapter and each thereof is hereby declared to be a public utility and to be subject to the jurisdiction, control and regulation of the commission and to the provisions of this act. The term "public utility" as used in this act shall cover cases:

~~(1)~~ (a) Where the service is performed and the commodity delivered directly to the public or some portion thereof, and where the service is performed or the commodity delivered to any corporation or corporations, or any person or persons, who in turn, either directly or indirectly or mediately or immediately, performs the services or delivers such commodity to or for the public or some portion thereof; and

~~(2)~~ (b) Where a pipeline corporation delivers the commodity to any corporation, person, their lessees, receivers or trustees regardless of whether it offers the pipeline service or commodity to the public or some portion thereof. Such pipeline shall be subject to the safety supervision and regulation of the commission only, unless and until such pipeline corporation makes application to the commission to be regulated generally as a public utility.

(2) The term "public utility" shall not include portable solar generation devices.

SECTION 3. That Section 48-1802, Idaho Code, be, and the same is hereby amended to read as follows:

48-1802. DEFINITIONS. As used in this chapter:

(1) "Consumer" means a person who, for primarily personal, family, or household purposes:

(a) Purchases a residential solar energy system under a solar agreement; or

(b) Leases a residential solar energy system under a system lease agreement.

(2) "Residential solar energy system" means a solar energy system that:

(a) Is installed on or in real property in the state of Idaho;

(b) Generates electricity primarily for on-site consumption for primarily personal, family, or household purposes; and

(c) Has an electricity delivery capacity that exceeds one ~~(1) kilowatt~~ thousand two hundred (1,200) watts.

(3) "Solar agreement" means a system purchase agreement or a system lease agreement.

(4) "Solar energy system" means a system or configuration of energy devices that collects and uses solar energy to generate electricity to be used by a consumer.

(5) "Solar retailer" means a person who:

(a) Sells or proposes to sell a residential solar energy system to a consumer under a system purchase agreement; or

(b) Owns the residential solar energy system that is the subject of a system lease agreement or proposed system lease agreement.

(6) "System lease agreement" means an agreement:

1 (a) Under which a consumer leases a residential solar energy system
2 from a solar retailer; and

3 (b) That provides for the consumer to make payments over a term for the
4 lease of the residential solar energy system.

5 (7) "System purchase agreement" means an agreement under which a con-
6 sumer purchases a residential solar energy system, or the energy created
7 from a residential solar energy system, from a solar retailer either out-
8 right or through installment payments.

9 SECTION 4. That Section 48-1803, Idaho Code, be, and the same is hereby
10 amended to read as follows:

11 48-1803. APPLICABILITY. (1) The provisions of this chapter shall ap-
12 ply to any solar agreement entered into on or after October 1, 2019, between a
13 solar retailer and a consumer, including, but not limited to, a solar agree-
14 ment that accompanies the transfer of ownership or lease of real property.

15 (2) The provisions of this chapter shall not apply to:

16 (a) The transfer or rental of real property on which a residential so-
17 lar energy system is, or is expected to be, located if the presence of
18 the residential solar energy system is incidental to the transfer or
19 rental;

20 (b) A lender, governmental entity, or other third party that enters
21 into an agreement with a consumer to finance a residential solar energy
22 system but is not a party to a system purchase agreement or lease agree-
23 ment; ~~or~~

24 (c) A sale or lease of, or the purchase of electricity from, a solar en-
25 ergy system that is not a residential solar energy system; or

26 (d) Portable solar generation devices as that term is defined in sec-
27 tion 61-122, Idaho Code.

28 SECTION 5. An emergency existing therefor, which emergency is hereby
29 declared to exist, this act shall be in full force and effect on and after
30 July 1, 2026.